

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----x
ARPAD FLYNN BUSSON,

Plaintiffs,

against

CITY OF NEW YORK,
P.O. TEMPLE, Shield No. 20104
P.O. CABROWSKI, Shield No. 1813,Defendants.
-----x

To the above named defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 2, 2020*Defendant(s) Addresses:*City of New York: 100 Church Street, New York, NY 10007
Police Officers: c/o NYPD

ROBERT DEMBIA, P.C.

Attorney for PlaintiffsBy: Robert Dembia
160 Broadway, 6th Floor
New York, NY 10038
(212) 226-5905

Index No.

Date Purchased:

Plaintiff designates New York
County as the place of trial

The basis of venue is

Place of Occurrence

SUMMONS

Plaintiff resides at

9550 Journey's End Road

Coral Gables, FL 33156

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----x
ARPAD FLYNN BUSSON,

Claim No. 2019PI018794

Plaintiff,

Index No.

against

COMPLAINT

THE CITY OF NEW YORK;
P.O. TEMPLE, Shield No. 20104;
and P.O. DABROWSKI, Shield No. 1813,

Defendants.
-----x

Plaintiff alleges by and through his attorney, Robert Dembia, P.C., upon information and belief and at all material times as follows:

JURISDICTION AND VENUE

1. Jurisdiction is founded upon the general jurisdiction of the court.

2. This is an action to redress the deprivation under color of statute, ordinance, regulation, custom or usage of a right, privilege and immunity secured to plaintiffs by the Bill of Rights, the Constitution of the United States, and the Amendments to the Constitution, including but not limited to First and Fourteenth Amendments to the Constitution of the United States, and in particular, the Fourth Amendment to the Constitution, which guarantees the "right of the people to be secure in their papers, houses, papers and effects against unreasonable searches . . ." and by federal statutory provisions

(42 U.S.C. § 1981 and 1983) and arising under the law and statutes of the State of New York.

3. Venue is laid in New York County because the incident occurred in the County of New York, Borough of Manhattan.

PARTIES

4. Plaintiff is a citizen of the United States and residents of the State of New York.

5. Defendant CITY OF NEW YORK is a municipal corporation organized and existing pursuant to the laws of the State of New York, with a place of business at 100 Church Street, New York, New York.

6. Defendants P.O. TEMPLE and P.O. DABROWSKY are and were police officers who at all material times were employees of the defendant City of New York.

7. At all material times, the defendant CITY OF NEW YORK operated, managed and controlled the Police Department of the City of New York, sometimes known as and referred to as the NYPD, and all of the Police Officers employed in the Police Department of the City of New York.

8. All of the acts and wrongful acts alleged herein against defendants were performed under color of state law.

FOR A FIRST CAUSE OF ACTION

9. On or about June 21, 2019, the individual defendants entered the home and bedroom and private space of the plaintiff,

without permission, without a warrant, without any good cause, the said defendants acted unreasonably and performed an unreasonable search of the home of the plaintiff, arrested the plaintiff causing fright, fear and indignity to plaintiff. The individual defendants acted in their capacity as Police Officers and in the course of their duties as employees of the CITY OF NEW YORK. The defendants wrongfully arrested, imprisoned, searched and seized the plaintiff, causing upset, humiliation, indignity, injury to reputation, all to the damage and detriment of plaintiff.

10. The defendants failed to pursue a proper investigation, which would have exonerated the plaintiff and removed all doubt about the innocence of the plaintiff and eliminated the need for the unlawful violation of the Constitutional rights of the plaintiff.

11. At no time did the Defendants have legal cause to arrest, imprison, grab, intrude on plaintiff, illegally searching the plaintiff's home, nor did the plaintiff consent to this illegal behavior nor was it privileged by law.

12. On or about July 10, 2019, within ninety (90) days after the claims herein arose, the plaintiffs served and the defendant City of New York received at 100 Church Street, New York, a Notice of Claim in writing sworn to by or on behalf of

plaintiff. The Notice of Claim so served and received complied with all requirements of law pertaining to Notices of Claim.

13. At least thirty (30) days have elapsed since the service of the said Notice of Claim and adjustment of payment has been neglected or refused, and this action will be commenced within one year and ninety (90) days (together with applicable extensions of said time period) after the happening of the event upon which the claims are based.

14. As a result of the foregoing, defendants are liable to plaintiff for illegal search and seizure and violation of plaintiff's Constitutional rights, in the amount of \$5,000,000.00.

FOR A SECOND CAUSE OF ACTION

15. Plaintiff realleges the foregoing paragraphs of this Complaint as if set forth here at length.

16. On or about June 21, 2019, the individual defendants in their capacities as Police Officers and in the course of their duties as employees of the CITY OF NEW YORK, without any warrant, order or other legal process and without any legal rights wrongfully and unlawfully searched the plaintiff's home, arrested plaintiff, restrained plaintiff, and deprived plaintiff of liberty to which plaintiff was entitled. At all times the Plaintiff was conscious of his confinement, his confinement was intentional by the Defendants; the Plaintiff did not consent to

the confinement and the confinement was not otherwise privileged by law.

17. As a result of the foregoing, defendants are liable to plaintiffs for false arrest and false imprisonment in the amount of \$5,000,000.00.

FOR A THIRD CAUSE OF ACTION

18. Plaintiff realleges the foregoing paragraphs of this Complaint as if set forth here at length.

19. Defendants, both jointly and severally, did violate the plaintiff's Constitutional rights to be free from unreasonable search of plaintiff's home and seizure of the Plaintiff's person as stated in Article One, Section Twelve of the New York State Constitution, by their unlawfully seizing, searching, holding and arresting the plaintiff without a court-authorized arrest warrant, reasonable suspicion or probable cause to do so. See Brown v. State, 89 N.Y.2d 172, 652 N.Y.S.2d 223 (1996).

20. As a result of the foregoing, defendants are liable to plaintiff for violation of the State Constitution in the amount of \$5,000,000.00.

FOR A FOURTH CAUSE OF ACTION

21. Plaintiff realleges the foregoing paragraphs of this Complaint as if set forth here at length.

22. Defendants CITY OF NEW YORK, and the individual defendants did abuse and deprive the Plaintiff of his civil and Constitutional rights under color of State law in violation of 42 United States Code § 1983 by their unlawful actions in searching, seizing, holding, touching, arresting, imprisoning, and prosecuting the Plaintiff. At all times the defendants so named were acting under color of State law in the scope of their employment to deprive a citizen of the United States, his Constitutional and statutory rights. In particular, they did violate his Constitutional rights under the Fourth, Eighth and Fourteenth Amendments of the United States constitution.

23. As a result of the foregoing, defendants are liable to plaintiff for violation of the federal Constitution and plaintiff's Constitutional rights as provided in 42 U.S.C. § 1983, et. seq., in the amount of \$5,000,000.00.

FOR A FIFTH CAUSE OF ACTION

24. Plaintiff realleges the foregoing paragraphs of this Complaint as if set forth here at length.

25. Defendants, CITY OF NEW YORK has grossly failed to train and adequately supervise its police officers in the fundamental law and procedure of arrest, search and seizure of persons.

26. As previously stated the police officers here illegally searched the home and of plaintiff without a warrant or without probable cause to believe a crime was committed.

27. Defendant CITY OF NEW YORK also grossly failed to train and adequately supervise its police officers and detectives to ensure that the type of harassment used against plaintiff, namely falsely accusing the plaintiff of being involved in criminal activity, when the said defendants knew or should have known that plaintiff was entirely innocent of the crime he was accused of namely.

28. The CITY OF NEW YORK by failing to implement a policy with its Police Department or if one exists to enforce such policy for its police officers and detectives, that no search, seizure or arrest can be done without at least a reasonable suspicion that criminal activity is afoot; that no individual or his home should be searched without probable cause being present.

29. The failure by the CITY OF NEW YORK to implement a policy with its Police Department or to actively enforce the policy if one was in existence that no citizen should be:

- a. Stopped, seized or searched without reasonable suspicion that criminal activity
- b. No citizen should be arrested without probable cause being present; and

The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK and which caused its police officers and detectives herein to not properly deal with the Plaintiff herein.

30. As a direct and proximate cause of the aforesaid acts, omissions, policies and customs of the CITY OF NEW YORK its police officers, both jointly and severally, did unlawfully imprison, assault, commit a battery to the person of the Plaintiff, did maliciously prosecute, violate the plaintiff's constitutional and statutory rights to be free from illegal search and seizures under the Fourth, Eighth and Fourteenth Amendment of the United States Constitution and to be deprived of liberty pursuant to the Fourteenth Amendment of the United States Constitution.

31. As a result of the foregoing, defendants are liable to plaintiffs for negligence resulting in violation of the federal Constitution and plaintiff's constitutional rights as provided in 42 U.S.C. § 1983, et. seq., in the amount of \$5,000,000.00.

FOR A SIXTH CAUSE OF ACTION

32. Plaintiff realleges the foregoing paragraphs of this Complaint as if set forth here at length.

33. THE CITY OF NEW YORK failed to properly supervise, train and exercise sufficient care in that a supervisory officer of sufficient rank was not present at the scene of the arrest

and then subsequently to evaluate the propriety of the arrest and procedures used by the Defendant police officers and detectives, especially the follow-up investigation of the facts and circumstances of the case which would have revealed that the police officer/detective had no reasonable suspicion to seize or search the Plaintiff nor subsequently probable cause to arrest the Plaintiff, nor did they have a right to use physical force during the arrest process.

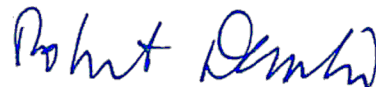
34. As a result of the foregoing, defendants are liable to plaintiffs for negligence resulting in violation of the federal Constitution and plaintiff's constitutional rights as provided in 42 U.S.C. § 1983, et. seq., in the amount of \$1,000,000.00.

35. One or more of the exemptions set forth in section sixteen hundred two of the CPLR applies.

WHEREFORE, plaintiff prays for a money judgment in the amount of \$5,000,000.00 on each of the foregoing causes of action, punitive damages, attorney fees, together with interest, costs, disbursements and any other relief which to the court appears just and proper.

Dated: New York, New York
November 2, 2020

ROBERT DEMBIA, P.C.
Attorney for Plaintiffs

A handwritten signature in blue ink, appearing to read "Robert Dembia", is written over a horizontal line.

By: Robert Dembia
160 Broadway, 6th Floor
New York, NY 10038
(212) 226-5905

ATTORNEY'S VERIFICATION

ROBERT DEMBIA, an attorney licensed to practice in the State of New York, affirms under penalty of perjury as follows:

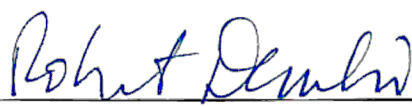
I am the attorney for the plaintiffs in this action.

I have read the foregoing Complaint and know the contents thereof. The same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to these matters, I believe them to be true.

This verification is made by me and not the party I represent because the party I represent resides in a county other than the one in which I have my office.

The grounds of my belief as to all matters stated on information and belief are derived from documents in our file and information reported to me by others.

Dated: November 2, 2020


ROBERT DEMBIA